

Court No. - 39

Case :- WRIT - C No. - 30229 of 2014

Petitioner :- M/S. Pooja Aata Chakki

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Sanjay Mishra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

We have heard Sri Sanjay Mishra, learned counsel for the petitioner, learned Standing Counsel for the respondent no. 1 and Sri Baleshwar Chaturvedi, learned counsel for the respondent nos. 2 and 3, which are officers of Dakshinanchal Vidyut Vitran Nigam Ltd., 33/11 KV Vidyut Kendra Sunderpur, Etawah.

The petitioner has assailed the electricity bill dated 2.5.2014 issued to him on the ground that the bill is absolutely incorrect in light of the past payments made by the petitioner and certificates issued to him by the said respondents.

Sri Baleshwar Chaturvedi, learned counsel for the respondent nos. 2 and 3 has submitted that when there is a dispute with respect to the electricity bill, the proper remedy for a consumer is under Clause 6.5 of the Electricity Supply Code, 2005. He states that the competent authority under Clause 6.5 of the Electricity Supply Code, 2005 would be in a better position to decide such a dispute raised by the petitioner since the entire records of the petitioner of the electricity connection will be available before it.

We have considered the submission of learned counsel for the parties and perused the record. It appears that against the impugned electricity bill, the petitioner has already made an application dated 8.5.2014 filed as Annexure-8 to the writ petition.

Under such circumstances, we dispose of this writ petition by providing that the competent authority under Clause 6.5 of the Electricity Supply Code, 2005 may decide the application/objection of the petitioner against the impugned electricity bill. The petitioner may file a certified copy of this order along with his application/objection dated 8.5.2014 to the impugned electricity bill within a period of two weeks from today and in case the same is done, the respondent no. 3 should proceed in accordance with law as provided under Clause 6.5 of the Electricity Supply Code, 2005.

No order is passed as to costs.

Order Date :- 28.5.2014

Rmk.